

An Act

ENROLLED SENATE
BILL NO. 65

By: Weaver of the Senate

and

Turner of the House

An Act relating to substance abuse services; defining terms; authorizing the possession, acquisition, distribution, and administration of emergency opioid antagonists by any person; providing criminal and civil immunities; providing for codification; providing an effective date; and declaring an emergency.

SUBJECT: Emergency opioid antagonists

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. NEW LAW A new section of law to be codified in the Oklahoma Statutes as Section 2-403 of Title 43A, unless there is created a duplication in numbering, reads as follows:

A. As used in this section:

1. "Emergency opioid antagonist" means a drug including, but not limited to, naloxone that blocks the effects of opioids and that is approved by the United States Food and Drug Administration for the treatment of an opioid overdose; and

2. "Person" means, unless the context otherwise requires, any individual, partnership, association, corporation, limited liability company, governmental entity, tribal entity, public or private institution of postsecondary education, or other legal entity.

B. Notwithstanding any provision of law to the contrary, any person may:

1. Possess and store emergency opioid antagonists;
2. Acquire emergency opioid antagonists by purchase or donation;
3. Distribute or make emergency opioid antagonists available to any person to the extent permitted under applicable federal law; and
4. Administer an emergency opioid antagonist to any person who the person believes, in good faith, is experiencing an opioid overdose.

C. A person shall not be subject to criminal prosecution for possessing, storing, acquiring, distributing, making available, or administering emergency opioid antagonists pursuant to this section.

D. Any person who, in good faith, distributes, makes available, or administers emergency opioid antagonists pursuant to this section shall not be liable for any civil damages as a result of any acts or omissions by such person, except for acts or omissions constituting gross negligence or willful or wanton wrongs in distributing, making available, or administering emergency opioid antagonists.

SECTION 2. This act shall become effective July 1, 2026.

SECTION 3. It being immediately necessary for the preservation of the public peace, health or safety, an emergency is hereby declared to exist, by reason whereof this act shall take effect and be in full force from and after its passage and approval.

Passed the Senate the 26th day of March, 2026.

Presiding Officer of the Senate

Passed the House of Representatives the 6th day of May, 2026.

Presiding Officer of the House
of Representatives

OFFICE OF THE GOVERNOR

Received by the Office of the Governor this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____

Approved by the Governor of the State of Oklahoma this _____

day of _____, 20_____, at _____ o'clock _____ M.

Governor of the State of Oklahoma

OFFICE OF THE SECRETARY OF STATE

Received by the Office of the Secretary of State this _____

day of _____, 20_____, at _____ o'clock _____ M.

By: _____